

The complaint

Mr B has complained about Allied World Assurance Company (Europe) dac. He isn't happy about the way it dealt with a claim under his landlord insurance policy that it eventually declined.

Any reference to Allied World includes any agents that it is responsible for unless specified.

What happened

Mr B's property suffered damage to the roof and some internal damage and advanced a claim under his landlord insurance policy as he thought this was caused by storm damage. But when Allied World looked into the claim it looked to settle the internal damage but declined the roof damage as it didn't think this was caused by storm damage, so Mr B complained to Allied World.

When Allied World looked into things for Mr B it maintained its position. It didn't think storm conditions were present leading up to the time of claim and it didn't think there was sufficient evidence to show that the damage is consistent with storm conditions. But Mr B remained unhappy, so he complained to this Service.

Our Investigator looked into things for Mr B but didn't uphold her complaint. Although she sympathised with Mr B, she felt that Allied World had dealt with her claim fairly as there was insufficient evidence that the damage was caused by storm.

As Mr B didn't agree, saying that the storm caused the roof damage, the matter has been passed to me for review.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Whilst I've considered all the information, I haven't commented on it all. Instead, I've focussed on what I consider to be the crux of the complaint and most relevant to the outcome reached. This isn't meant as a discourtesy but reflects the informal nature of our Service.

I know Mr B feels that the damage was caused by storm damage and while I understand this, we generally consider three main aspects as outlined below when considering a storm damage claim. The policy doesn't specifically provide a definition of storm, but we would generally say a storm involves violent winds, usually accompanied by rain, hail or snow. And when we look at a storm claim complaint, there are three main aspects we consider.

- Do we agree that storm conditions occurred on or around the date the damage is said to have happened?
- Is the damage claimed for consistent with damage a storm typically causes?
- Were the storm conditions the main cause of the damage?

As our Investigator has explained we're only likely to uphold a complaint where the answer to all three questions is yes. Allied World didn't feel there was a storm leading up to the date

of the incident but there was a storm identified a few weeks before the date of claim that *could* have contributed here.

However, for completeness I've gone on to consider the additional points. Mr B's builder has gone on to suggest that the external damage is compromised roof coverings and split dormer cladding which isn't usual. But I'm not persuaded that Mr B has provided sufficient information to show that storm conditions were the main cause of the damage.

Allied World feel that the main cause of the damage to Mr B's roof stemmed from lack of maintenance which contributed to the damaged area and subsequent water ingress. It provided images that predated the damage by a few months which it felt showed damage that the storm *may* have exacerbated.

I know Mr B questions whether this is the case and doesn't feel that the photos showing damage from before the time of storm showed lack of maintenance or that this was a contributing factor here. But the images show roof coverings has slipped slates, broken tiles, heavy vegetation growing around the guttering and the hole around the dormer window is present which does support Allied World's position. And while ideally a more detailed report would help, I can't hold this against Allied World as a lot of rectification had been carried out by Mr B before it's consideration and initially there wasn't any photographic support about this part of the claim.

I understand Mr B's own report suggests that all the damage could be attributed to storm damage, but Allied World has suggested otherwise. And although Mr B has provided a report from his own builder at a later stage suggesting that it could be storm related, it doesn't address any of the clear maintenance issues or comment on the problems identified here as shown in the pictures from before the time of claim and I would expect it to. Plus, the builder hasn't commented on whether the storm was the main cause of the damage or not. And had the roof been inspected and repaired earlier the storm damage may have been limited here.

Given all of this, I don't think Allied World has acted unfairly in declining the claim as, on balance, I don't think there was sufficient evidence that the damage was caused by storm given the general poor maintenance identified before the storm at the property.

My final decision

It follows, for the reasons given above, that I'm not upholding this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr B to accept or reject my decision before 27 March 2026.

Colin Keegan
Ombudsman